

JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION (OVERSEAS CONTRACTING ACTIVITIES)

1. I recommend that Embassy Abu Dhabi use other than full and open competition for the acquisition of *spare parts for the switchgear system. The estimated cost of this procurement may exceed AED 45,000 (\$12,252).*
2. Nature and/or description of the action being approved.
Procurement of spare parts for the switchgear system to replace faulty components and ensure the continued functionality of the electrical distribution infrastructure.
3. A description of the supplies or services required to meet the agency's needs.
The required items include specific spare parts for the existing switchgear system. These are essential to maintain uninterrupted electrical operations in the chancery and must match the original equipment specifications.
4. An identification of the statutory authority permitting other than full and open competition.
FAR 6.302-1(c)
5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited (for sole source acquisitions; also required for unusual and compelling urgency where more than one offer will not be solicited).
The existing switchgear system is manufactured by Schneider Electric, and only original, brand-specific spare parts are compatible. Any deviation from the specified components may result in system malfunction, inefficiency, or safety hazards. The equipment design requires an exact match to maintain reliability and operational integrity.
6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.
This JOFOC along with the RFQ will be posted on SAM.gov for publicization. Quotes from other vendors will also be considered, provided they are compatible with the existing parts.
7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.
Brand specific spare parts are required due to the existing building system which will be compatible with the spare parts from the same Original Equipment Manufacturer (OEM).
8. A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.

Market research was not conducted because the parts are brand-name specific, and only the original manufacturer or its authorized agents can supply them to meet the required specifications.

9. Any other facts supporting the use of other than full and open competition.
The parts requested are integral to the existing electrical system infrastructure at the Embassy, manufactured and supported solely by Schneider Electric. Using parts from other manufacturers may jeopardize system performance and void warranties.
10. A listing of sources, if any that expressed, in writing, an interest in the acquisition.
Schneider Electric Industries SA.
11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.
None.

CERTIFICATIONS

I certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

April 11, 2025
Date:

signed
Johnson Parel (EPAP Facility Manager)

I certify that this submission is accurate, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

April 11, 2025
Date:

signed
Chelsea Geier (Contracting Officer)